



DEPARTMENT OF THE NAVY
NAVAL FACILITIES ENGINEERING AND EXPEDITIONARY WARFARE CENTER
1000 23RD AVENUE
PORT HUENEME CA 93043-4301

IN REPLY REFER TO:
JA-25-0013

**JUSTIFICATION AND APPROVAL
FOR USE OF OTHER THAN FULL AND OPEN COMPETITION**

1. Contracting Activity.

The requiring activity is Naval Facilities Engineering and Expeditionary Warfare Center (NAVFAC EXWC), Port Hueneme, CA. The contracting activity is Naval Facilities Engineering and Expeditionary Warfare Center (NAVFAC EXWC) Acquisition Operations Team (CON74).

2. Description of the Action Being Approved.

This Justification and Approval (J&A) is to increase the ceiling capacity by [REDACTED] from [REDACTED] to [REDACTED] using other than full and open competition for Architect-Engineer (A-E) contract – Waterfront Facilities Inspection (WFI) and Assessment within Region 2:

N39430-20-D-2208

Marine Solutions, Inc.

The Region 2 WFI contract was awarded on 12 February 2020 and was bridged to extend the ordering period end date to 11 February 2026. This additional capacity is critical to ensure uninterrupted operations and avoid a lack of sufficient capacity for award of anticipated requirements for the remaining period of performance of the contract.

3. Description of Supplies/Services.

The WFI and Assessment is a Single Award, Firm Fixed Price (FFP), Indefinite Delivery, Indefinite Quantity (IDIQ), Small Business Set-Aside, A-E services for waterfront facilities inspection and assessment in support of Department of Defense (DoD) facilities within Region 2, which is defined as the Mid-Atlantic Region consisting of Virginia, Maryland, and Washington D.C. DoD's waterfront facilities require routine inspections. The WFI contract supports the Navy's need to acquire services for underwater and above water inspections, material conditions assessments, engineering and design services in support of sustainment, restoration, modernization, and military projects at DoD waterfront and ocean facilities.

This J&A supports Navy projects that must be accomplished through the remaining period of performance to avoid likely critical impact to waterfront facilities which require timely inspections and assessments that are performed by highly specialized engineering services and certified divers. A delay in awarding these projects would result in negatively impacting the installations' warfighter readiness and missions in support to DFSP Craney Island, Naval Research Laboratory Washington D.C., NAVSTA Norfolk, NAS Oceana, NSF Dahlgren, NSA Annapolis, USNA MD, NWS Yorktown, Langley AFB, and JEB Little Creek-Fort Story. Some of these impacts consist of unavailability of highly critical facilities such as explosive handling wharfs, fueling piers, and submarine piers for Navy vessels and carriers to use. This is due to the limited number of these facilities and the fact that they are designed solely for the loading and

unloading of fuel, ammunition, and [REDACTED]. If Navy vessels and carriers cannot utilize any facility, impacts on a strategic level would be experienced, as substantial planning for base closure is required for any movement of [REDACTED] which utilize two (2) to three (3) vessels or carriers at a time. Therefore, it is imperative that the facilities' inspections take place as they are in a salty, polluted aggressive natural environment that undergoes repeated horizontal and vertical impact loading which over time will damage and erode the facilities' structural strength.

Projects schedule for completion include:

Planned FY25 Requirements:

- **Waterfront Inspection and Assessment at DFSP Craney Island, Portsmouth, Virginia, [REDACTED]**
- **Waterfront Inspection and Assessment at Naval Research Laboratory, Washington D.C., [REDACTED]**
- **Waterfront Inspection and Assessment at NAVSTA Norfolk and NAS Oceana at Norfolk, Virginia, [REDACTED]**
- **Waterfront Inspection and Assessment at Region 2, NSF Dalhgren, Virginia, [REDACTED]**
- **PC08 – Additional PCAS Services for YP Pier, [REDACTED]**
- **PC09 – Additional Design Services for YP Reach A/Phase 2, [REDACTED]**
- **PC10 – PCAS for Reach A, [REDACTED]**

Anticipated FY26 Requirements:

- **Waterfront Inspection and Assessment at NSA Annapolis and USNA MD, [REDACTED]**
- **Waterfront Inspection and Assessment at NWS Yorktown, [REDACTED]**
- **Waterfront Inspection and Assessment at Langley AFB, [REDACTED]**
- **Waterfront Inspection and Assessment at JEB Little Creek-Fort Story, [REDACTED]**

The sum of the Independent Government Cost Estimates ([REDACTED]) for planned projects are not within the existing contract ceiling of [REDACTED]. Thus, this J&A for increasing the contract capacity by [REDACTED] is required to ensure no impact on required routine inspections on waterfront facilities. The current contractor has the requisite knowledge, expertise, and resources to perform the required services without interruption. Introducing a new contractor would not be in the best interest of the Government and would put the Government at serious risk of failing to comply with required inspections and assessments of critical waterfront facilities which may result in profound implications to the national strategy. This is the only NAVFAC EXWC contract available for performance of these specialized services. Specifically A-E services required by individual task orders issued under this contract required the following skill areas:

- Field investigations and underwater inspections;
- Engineering analysis of waterfront facilities and ocean facility structural, mechanical and electrical systems and component conditions in comparison to design requirements, previous inspection reports and/or existing drawings of the facilities;
- Engineering calculations for structural analysis with or without previous design calculations;
- Failure analysis and forensic engineering;
- Waterfront and ocean facility engineering feasibility studies;
- Cost estimation for waterfront and ocean facility rehabilitation;
- Design of facility repairs; preparation of construction documents; PCAS support; and
- Environmental studies (e.g. water column analysis, salinity testing, sea life migration and spawning impact, and plant life culture impact) in support of permit applications to federal, state, and local regulatory agencies; and preparation of documentation.

Estimated Dollar Value and Capacity Increase Amount Requested

Funds Type	FY25 Total	FY26 Total	Capacity Increase Requested
O&M			

4. **Statutory Authority Permitting Other Than Full and Open Competition.**

The statutory authority permitting other than full and open competition is 10 U.S.C. 3204(a)(1), as implemented by FAR 6.302-1, when the supplies or services required by the agency are available from only one or a limited number of responsible sources, and no other types of suppliers or services will satisfy agency requirements, full and open competition need not be provided for.

5. **Rationale Justifying Use of Cited Statutory Authority.**

Market research revealed that small businesses are now capable of servicing all four (4) Continental United States (CONUS) regions, which was previously not the case for historical procurements. This led to a change of acquisition strategy to consolidate all four (4) individual IDIQs for each CONUS region into one (1) Multiple Award Contract (MAC). Due to the approval thresholds and their associated timelines for consolidating A-E services, the Region 2 contract was bridged by one (1) year to avoid a gap in services which cannot take place as the waterfront infrastructures must be kept in compliance.

NAVFAC EXWC provides A-E services in support of the Navy and DoD to meet their mission requirements. Commander, Navy Installations Command (CNIC) required routine inspections of its waterfront facilities on a periodicity aligning with industry standards, and NAVFAC EXWC's Waterfront Inspection Program provides A-E services to meet the stated requirement.

The WFI program's mission is to acquire services for underwater and above water inspection, material condition assessment, engineering and design services in support of sustainment, restoration and modernization, and military projects at DoD waterfront and ocean facilities at various locations within Region 2.

Any lack of sufficient capacity would be disruptive to the aforementioned WFI program's requirements and introduce significant cost and schedule impacts throughout the program and could negatively impact the Navy's ability to fulfill critical requirements. This follow-on effort of highly specialized services will prevent substantial duplication of costs to the Government that is not expected to be recovered through competition or unacceptable delays in fulfilling the agency's requirements.

The Region 2 contract remaining capacity is currently insufficient for award of the current task order for waterfront inspection of seventy (70) facilities at NAVSTA Norfolk and NAS Oceana. If this task order was to experience significant delay, it could lead to possible restriction of facilities at the installations, detrimentally affecting warfighter readiness. As NAVSTA Norfolk is the largest Navy operations base worldwide, it is imperative to avoid any delay which could affect national strategy.

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable.

This A-E contract was competitively procured through the Selection of Architects and Engineers statute (formerly known as The Brooks Act). As such, the contractor is the only source capable of providing the required services within the timeframes required without a break or delay in service, no other offers for this proposed additional tasking have been solicited. However, recent market research has shown that there will be competition for the follow-on contract, and there are other small businesses that will be interested in this requirement. In addition to the market research, NAVFAC EXWC also evaluated existing contract vehicles in an effort to determine the viability of their use for the required services, specifically the A-E services for waterfront inspection and assessment for other regions. Despite having similar requirements, those contract vehicles are reaching the end of their performance terms, so they are not a viable option. The A-E contract for Petroleum, Oil, and Lubricants (POL) program was also evaluated. The POL contract is focused on inspecting POL systems, and engineering and design services, deliverables, and testing are geared towards POL systems as opposed to the WFI contract, which focuses on waterfront inspections, requiring specialized experience and skills in evaluating waterfront facilities with concomitant skills in hardhat diving. Additionally, the WFI contract required experienced engineer divers who graduate from an accredited school and are experienced in waterfront inspections.

The proposed contract action was not synopsisized on the SAM website since this capacity increase is under the terms of an existing contract that was previously synopsisized in sufficient detail. In accordance with FAR 6.305, the approved J&A will be posted on SAM.GOV within fourteen (14) days after award of the contract modification.

7. Determination of Fair and Reasonable Cost.

The Contracting Officer will determine that cost to the Government of the services covered by this Justification will be fair and reasonable in accordance with FAR Part 15. It is anticipated that all future task orders will be reviewed to determine that costs are fair and reasonable based on

price and/or cost analysis in accordance with FAR 15.404, Proposal Analysis, and similar task orders that were awarded against this contract.

8. Actions to Remove Barriers to Future Competition.

A competitive follow-on contract is in process and will be awarded by February 2026. The follow-on will be a Multiple Award, Indefinite Delivery, Indefinite Quantity contract with a set-aside for small business participants requiring additional approvals in accordance with NPGI 36.601-3(2). Furthermore, the technical team is analyzing both historical and future program needs to ensure the follow-on contract's capacity ceiling is adequate to handle forecasted workload for future mission requirements. This will avoid the reoccurrence of capacity constraint related issues being experienced, and the need for future capacity increases.

[Redacted]

APPROVAL

...hizance which are included in this
...ments, except as noted herein are
complete and accurate to the best of my knowledge and belief.

[Redacted]

[Redacted]

Center

[Redacted]

Center

the best of my knowledge and

[Redacted]

Center

CERTIFICATION

for authorization of this Justification
and belief.

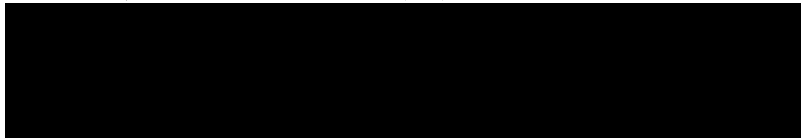
Chief of the Contracting Office

[Redacted]

Center

COMPETITION ADVOCATE

Upon the basis of the above Justification, I hereby recommend the approval of the proposed procurement described herein using other than full and open competition, pursuant to authority of 10 U.S.C. 3204(a)(1).



CAPT. CEC, United States Navy
Commanding Officer
Naval Facilities Engineering and Expeditionary Warfare Center